

16.	23CV1771	MADRONA VINEYARDS L.P. ET AL VS. JERRY VISMAN, AN INDIVIDUAL ET AL
ATTORNEY FEES		

Plaintiffs, Madrona Vineyards L.P. and Leslie Bush as Trustee of the Bush Living Trust (collectively "Plaintiffs"), seek an order awarding attorney fees in the amount of \$29,261.25 and \$4,408.30 in costs incurred in connection with the preparation, service, and filing of a motion to hold Defendant, High Hill Ranch, LLC ("Defendant"), in contempt, and for the short-cause trial preparation and costs arising from the contempt hearing. Defendant's Opposition was filed on September 10, 2026. Plaintiff's Reply was filed on September 11, 2026.

JUDICIAL NOTICE

Plaintiffs seek judicial notice of the Declaration of Eric C. Miller in Support of Plaintiff's Ex Parte Application for Order to Show Cause for Why Defendant High Hill Ranch, L.P. Should Not be Held in Contempt for Violation of Preliminary Injunction filed October 15, 2025.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the request made by Plaintiffs fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Plaintiffs provided Defendant and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Plaintiffs have satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

ATTORNEY'S FEES AND COSTS

On June 30, 2026, the Court entered an Order of Contempt finding Defendant in contempt of the Court's preliminary injunction. Plaintiffs accordingly seek to recover their reasonable attorneys' fees and costs pursuant to Code of Civil Procedure § 1218(a). Plaintiffs

seek an award of \$29,261.25 in attorneys' fees, \$4,408.30 in costs, for a total of \$33,669.55. The amounts claimed include:

- \$11,314 incurred in preparing the initial ex parte application for an order to show cause regarding contempt and arguing the application at the hearing
- \$910 in coordination of service of the Court's order and related work
- \$772.50 for responding to Defendant's informal discovery request related to the contempt hearing
- \$866.25 in preparation for the initial evidentiary hearing
- \$12,020 preparing for the June 2026 evidentiary hearing and for conducting the actual hearing which took place over two days

Defendant argues that as the Court acknowledged ambiguity in the Preliminary Injunction and Plaintiffs' failure to meet and confer prior to initiating the contempt proceedings, attorney fees are not warranted. Should the Court find a fee award is appropriate, Defendant argues the amount requested is excessive because Plaintiffs sought four contempt findings but only resulted in two contempt findings. As these are unrelated incidents which occurred on different days, Plaintiffs should not be awarded fees on the unsuccessful September 27, 2025, Exit Road incident. Defendant requests the motion be denied in the entirety for lack of apportionment, or in the alternative, significantly reduced to reflect Plaintiffs' actual, limited success.

Plaintiffs argue that the alleged violations arose from the same Preliminary Injunction, involved the same parties, and were litigated at the same contempt proceeding. It is therefore impossible to segregate the time spent on one incident from another, as they are inextricably intertwined.

A person who is subject to a court order as a party to the action, or any agent of this person, who is adjudged guilty of contempt for violating that court order may be ordered to pay to the party initiating the contempt proceeding the reasonable attorney's fees and costs incurred by this party in connection with the contempt proceeding. Code of Civil Procedure § 1218(a).

“ ‘Attorney's fees need not be apportioned when incurred for representation on an issue common to both a cause of action in which fees are proper and one in which they are not allowed.’ [Citation.] ‘Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.’ [Citation.] Apportionment is not required when the issues in the fee and nonfee claims are so inextricably intertwined that it would be impractical or impossible to separate the attorney's time into compensable and noncompensable units.” (*Graciano v. Robinson Ford Sales, Inc.*, *supra*, 144 Cal.App.4th 140, 158–159, 50 Cal.Rptr.3d 273.)

“ ‘Where a lawsuit consists of related claims, and the plaintiff has won substantial relief, a trial court has discretion to award all or substantially all of the plaintiff's fees even if the court did not adopt each contention raised.’ [Citation.]” (*Greene v. Dillingham Construction, N.A., Inc.*, *supra*, 101 Cal.App.4th at p. 423, 124 Cal.Rptr.2d 250.) “ ‘Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.’ [Citation.]” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 158–159, 50 Cal.Rptr.3d 273.) *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228, 1251 [166 Cal.Rptr.3d 676, 695].

The Order of Contempt entered on June 30, 2026, found Defendant in contempt for the incident involving the closure of High Hill Road on September 12, 2025, and the incident involving interference and removal of Madrona Vineyards’ signs on September 13, 2025. The Court found that although presented as two separate violations – one for each sign – the September 13, 2025, incident constituted a single incident for purposes of calculating fines. The Court did not find the incident on September 27, 2025, when Defendant turned cars away from using Exit Road, was a violation of the Preliminary Injunction.

The Court finds the violations of the Preliminary Injunction are based on a common core of facts arising from the same Preliminary Injunction, the work performed by Plaintiffs’ counsel is inextricably intertwined where it would be impractical or impossible to separate the attorney’s time.

Reasonable Rate

The Declaration of Eric C. Miller provides that he was licensed in Washinton in 2008 and California in 2015 and had an hourly rate of \$450 in 2025 which increased to \$495 in 2026. Associate Attorney John P. Gutierrez was licensed in 2023 and had an hourly rate of \$310 in 2025 which increased to \$335 in 2026. Associate Attorney Francesca C. Torres was licensed in 2022 and has an hourly rate of \$355. Paralegal Samina Asgur has over 20 years’ experience and an hourly rate of \$285.

The Court finds that the hourly fee rates are reasonable.

Number of Hours Claimed

The Declaration of Eric C. Miller provides that he performed 25.90 hours of work for a total of \$13,443.75. Attorney John P. Gutierrez performed 29.90 hours of work for a total of \$9,306.50. Attorney Francesca C. Torres performed 6.7 hours of work solely in connection with the preparation of the underlying motion, including reviewing all the billing entries, for a total of \$2,378.50. Paralegal Samina Asgur performed 14.50 hours of work for a total of \$4,132.50.

Counsel advises that the actual amount incurred was \$33,938.75 but the billings were reduced by \$4,642 to account for any redundancies in work and in exercising overall billing

judgment. Reductions were further made in reviewing the invoices while preparing the underlying motion.

The Court finds that the number of hours claimed are reasonable.

Costs

The Declaration of Eric C. Miller provides Plaintiffs have incurred recoverable costs, including the fee for filing the OSC (\$60.00) and the underlying motion (\$60.00), along with transcript and court reporter costs (\$4,228.30), for a total of \$4,408.30.

The Court finds that the costs incurred are reasonable.

TENTATIVE RULING #16:

PLAINTIFFS' MOTION FOR ATTORNEY'S FEES IS GRANTED AS REQUESTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.